Healthgenie India Private Limited

Date: 18th May' 2023

Mr. Abhishek Aggarwal,
S/O Girish Aggarwal,
FCA-115, Behind Akash Cinema,
Jain Colony, Ballabgarh Faridabad
Haryana-121004.

Subject:- Appointment Letter

Dear Mr. Abhishek,

With reference to your application and subsequent meeting with us, we are pleased to offer you an appointment as **" Sr. Accounts Executive "**.

Your date of joining in the company is effective from 18th May' 2023.

Your Annual CTC is **INR 6,28,920 (Rupees Six Lakh Twenty Eight Thousand Nine Hundred Twenty Only.)** as per details in Annexure -A.

The Terms and Conditions of Appointment (Annexure I) are enclosed.

We request you to confirm to us your acceptance by returning the signed duplicate copy of Annexure I.

We welcome you, and look forward to a long and mutually beneficial association.

Thanking you,

Yours truly,

For Healthgenie India Pvt. Ltd

Authorised Signatory
Santosh Kumar
HR Manager

Abhishek Aggarwal
(Signature)

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Read, Understood, Agreed &Accepted
Abhishek Aggarwal

Registered Office: B-13, Ist Floor, Okhla Industrial Area, Phase-2, New Delhi-110020
Tel. No. 011 48323232, 46434444 E-mail: info@healthgenie.in **CIN- U52100DL2014PTC268997**
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Annexure – I of Appointment Letter

TERMS AND CONDITIONS OF APPOINTMENT

Confirmation.

1. You are a confirmed employee from the date of joining the company itself and there is no probation period.

Medical Fitness & Verification of Particulars.

2. Your appointment is subject to you're being declared (and remaining) medically fit by a Medical Officer or by a Doctor specified by the company. The Management has the right to get you medically examined by any certified medical practitioner during the period of your service. In case you are found medically unfit to continue with the job, the company shall be at liberty to terminate your services without notice.

Duties And Responsibilities.

3. The duties and responsibilities are detailed as under:-

You are being deputed to perform the duties of " **Sr. Accounts Executive** " at Delhi Location

a) The Company will expect you to work with a high standard of initiative, efficiency and economy.

b) You will devote your entire time to the work of the company and will not undertake any direct/ indirect business or work, honorary or remuneration except with the written permission of the management in each case.

c) You shall not seek membership of any local or public bodies without first obtaining written permission from the management.

d) You will be responsible for the safe keeping and return in good condition and order of all the properties of the Company which may be in your use, custody, care or charge. For the loss of any property of the company in your possession, the company will have a right to assess on its own basis and recover the damages of all such material from you and to take such other action as it deems proper in the event of your failure to account for such material or property to its Satisfaction.

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e) You are entitled to following leaves in a year governed by various guidelines and circulars issued from time to time.

Casual Leave - 12 days in a year (1 day per month)
Earned Leave - 15 days in a year

You would be eligible for earned leave upon successful completion of one year of your service with the company. The Earned leaves are encashable only at the time of exit from the company. In case of Earned leave, pre-approval is important and you are expected to plan your leaves. Management reserve the right to take penal action if you take leaves over and above sanctioned leaves

Termination of Permanent Service.

4. Permanent service can be terminated on the following grounds:-

a) You will automatically retire from the services of the Company on attaining the superannuation age of 58 years. After the expiry of the period of 58 years, the management reserves the right to extend your services for a period of one year provided you are physically and mentally fit to carry on the work in the organization subject to maximum up to the age of 60 years. The management is the sole judge of such extensions. Any appointment after which shall be subject to a new agreement.

b) If you absent yourself without leave or remain absent beyond the period of leave originally granted or subsequently extended, you shall be considered as having voluntarily terminated your employment without giving any notice after deduction of notice period as per clause 4(e) unless you

I. return to work within ten days of the commencement of such absence; and
II. give a proof/explanation to the satisfaction of the Company regarding such absence.

c) Your services are liable to be terminated without any notice or salary in lieu thereof in the case of continued ill health.

d) Your services are liable to be terminated without any notice or salary in lieu thereof for misconduct, without being exhaustive and without prejudice to the general meaning of the term 'misconduct' in the case of reasonable suspicion of misconduct, disloyalty, commission of any act involving moral turpitude, any act of in discipline or inefficiency as compared to other employees or lower performance as compared to other employees of your category.

e) Your services are terminable either by the Company or by you by giving notice of 03 months or payment of equivalent monthly salary for 03 months in lieu thereof on either side. During the notice/handover

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period, you can encash your leaves but not permitted to avail/adjust leave in notice period as handover of work is required and is important, for the Company and more important for all the other working employees, who's livelihood is still dependent on the Company.

f) Your services are liable to be terminated without any notice or salary in lieu thereof in the case of the mis-declaration, wrong information or withheld information, given about your past history/reference, education/ Employment history. If at any time of the service it is found that you have given wrong information for the job or withheld information pertaining to any legal matters, civil/labour/criminal or any legal dispute civil/labour/criminal against your past employer, your services are liable to be terminated without any notice or salary in lieu.

Notice Period Policy

5. The company has 3 month's notice period, which comes into effect from the your date of resigning.

General

6. The following general points are to be observed:-
   a. In respect of all matters related to Service conditions including those not specifically covered by this letter will be governed by Service Rules as applicable to personnel of your category and as per Company's policy as in force from time to time.

   b. In case of any dispute of any kind arising out of your employment or breach of contracts, Delhi Courts alone would have jurisdiction in the matter.

   c. This appointment is based on the information supplied to us by you in your application/personal resume form. If any information furnished by you is found to be incorrect or it is found at a later date that you have not revealed or have willfully withheld any relevant information, your services are liable to be terminated and you will not be entitled to any dues accrued from this illegal employment.

   d. It is mandatory for you to furnish the details of current employment of your family members. Also, you are required to submit the details in written about the previous employment of any of your family members, if they were associated in any manner/capacity with similar industry or similar product segment at any time. If you fail to declare the above mentioned details and in future at any time the company gets to know about any such conflict of interest, it will be considered as intentional breach of trust and your services may be terminated on immediate basis. Also, you may be prosecuted for the same or have to face other legal consequences.

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e. In case of termination or putting of the resignation from the company, salary & full and final settlement will be processed together as of full & final Settlement as the notice period of 2 months.

f. Full and Final will be done after handover and the HOD clearance, as per compnay procedures/policies.

g. Your age mentioned in the Matriculation/Higher Secondary certificate will be deemed to be the conclusive proof of your date of birth.

h. You will intimate in writing to the Management any change of address within a week from the change of the same, failing which any communication sent on your last recorded address shall be deemed to have been served on you.

i. Yearly you have to give statement for disclosure of family member, proof of residence (temporary and permanent) and assets in possession. In case of change in between, it has to be automatically updated.

j. The designation assigned to you is subject to change depending upon work assignments from time to time.

k. You are liable to be transferred from one permanent location to another. The management also reserves the right to transfer you to subsidiary/associated companies, offices/factories at any place existing at present or which may be established in future in the exigencies of work. In case of transfer you will be entitled to the allowances as per the company rules.

l. Use of mobile phones, personal laptops or any electronic media without the consent of the management is strictly prohibited inside the premises of the company.

m. Access of personal mails in internet or outflow of any information either in soft or hard copy without the consent of the management is strictly prohibited.

n. You will hand over the charge and the property and material of the company in your possession at the time of cessation of your employment with the company.

o. You will be liable to pay damages to the company for the loss caused by you directly or indirectly in addition to other legal remedies which may be required for violating any of the provision of this appointment letter and for this the Courts at Delhi will have jurisdiction.

p. At the time of reporting for duty, you are required to bring the following documents

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I. Certificates in support of your educational/professional qualifications, experience, date of birth and other particulars in original together with the copies thereof.

II. Proof of residence (Xerox copy of Aadhar Card, Passport, licence/ration card/voter's identity card).In the absence of the above, an affidavit from court.

III. Three stamp size copies of your recent photograph.

IV. Appointment letter of present / previous employment with salary structure, latest salary slip and relieving Letter in case you are / were employed.

I have read and understood the terms and conditions stated above and in the earlier pages and hereby signify my acceptance of the same.

Signature : Abhishek

Name : Abhishek Aggarwal

Date : 18th May 2023.

Santosh

Abhishek

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ANNEXURE - A

Name : Abhishek Aggarwal
Date of Joining : 18th May' 2023
Designation : Sr. Accounts Executive
Location : Delhi

Annexure		
Components	**Amount Per Month**	**Amount Per Annum**
Basic	23400	280800
HRA	11700	140400
Con Allowance	3000	36000
Spl Allowance	5850	70200
Medical Allowance	2850	34200
Gross Wages	**46800**	**561600**
EPF @ 12%	1800	21600
ESI @.75%	N/A	N/A
Net Pay	**45000**	**540000**
EPF @ 13%	1950	23400
ESI @3.25%	N/A	N/A
15 EL's from year two onward	975	11700
CL-1 Per Month	1560	18720
Gratuity	1125	13500
Total CTC Amount	**52410**	**628920**

Santosh Kumar

Authorised Signatory
Santosh Kumar
(HR Manager)

Acceptance
I have read and understood the above distribution of my salary details and the same is acceptable to me.

Name : Abhishek Aggarwal,

Sign : Abhishek

Date : 18th May 2023

Read, Understood, Agreed &Accepted
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NON COMPETE - NON DISCLOSURE/ SECRECY AGREEMENT

You will not disclose any secrecy of manufacturing processes / suppliers / buyers / procedural information / security arrangements / administrative/ IT information / Technical information/Technical know how and or any organizational matters or processes, which you will learn and would be privy during your employment with "M/s Healthgenie India Private Limited" and will not sell, transfer and alienate during your service, either by way of email or by any communicating ultra modern system of computers to anybody else regarding secrecy of the company.

1. You shall hold in trust and confidence of all Confidential Information of the "COMPANY" and agrees not to disclose such information to any third party anywhere in the world or use such information for any purpose other than that for which such information has been disclosed to you by the "COMPANY".

2. You shall not make any copies of such Confidential Information of the "COMPANY". You agrees that all Confidential Information disclosed by the "COMPANY" shall remain the property of "Company" and shall not be disclosed by you at all.

3. Any Confidential Information coming to your knowledge by virtue of this employment or during course of the employment in the "COMPANY" is strictly confidential and that you shall not directly or indirectly associate yourself to any third party to compete in any way anywhere in the world, with the entire range of business, concepts, products, services and intellectual properties of "COMPANY " or its clients.

4. You shall under no circumstance, disclose Confidential information to any other third party without first obtaining written consent from the "COMPANY",or its duly authorized representative. You acknowledges that the above information is material and confidential and that it affects the business operations of the company.

5. That, you shall not compete, directly or indirectly with the Company, Healthgenie India Private Limited, or its Group/Sister Companies for next 24 months from the last date of your employment/ association with Healthgenie India Private Limited. In addition to the same you would further not join directly or indirectly any Competitor company of Healthgenie India Private Limited, or its Group/Sister Companies for the same tenure, mentioned above.

6. Also, for next 24 months, post your exit from Healthgenie India Private Limited, you shall not join or associate as an employee, advisor, consultant with any other Company dealing into the similar product categories selling online in categories like Health & Personal care, Homecare products, Nutrition Products, Supplements, Nutraceutical, Tea & Coffee, Hospital Products, Fitness products, Baby products, Beauty products, Personal care appliances, Industrial & Scientific, Groceries & Gourmet food, Home & Kitchen, Medical Devices and any other product segment in which the company is currently involved or have prospects, and selling at any online marketplace portal as Amazon, Snapdeal, Flipkart, Paytm, Shopclues, 1mg, Rediff, Nykaa, Jiomart, Walmart, Tatacliq etc. or

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to any other seller / company, selling similar products / categories in which the company is presently involved or have prospects.

7. That you shall not work with any active supplier, buyer, vendor or agents associated with Healthgenie India Private Limited or or its Group/Sister Companies for a period of 24 months, post your exit from Healthgenie India Private Limited. Definition of Active Supplier/Vendor/Agent/Buyer is who have made any correspondence for sampling, quotation, purchase, with Healthgenie India Private Limited in the last 5 years.

8. That, you, shall not sell or start your own business into the similar product categories, or product segment selling online in categories like Health & Personal care, Homecare products, Nutrition Products, Supplements, Nutraceutical, Tea & Coffee, Hospital Products, Fitness products, Baby products, Beauty products, Personal care appliances, Industrial & Scientific, Groceries & Gourmet food, Home & Kitchen, Medical Devices and any other product segment in which the company is currently involved, or have prospects and sell at any online marketplace portal as Amazon, Snapdeal, Flipkart, Paytm, Shopclues, 1mg, Rediff, Nykaa, Jiomart, Walmart, Tatacliq etc. or to any other seller / company, selling similar products categories for a period of 48 months, post your exit from the company.

9. That neither in present nor after 24 months, post your exit from the company, Healthgenie India Private Limited, any family member of yours, that may be your spouse, parents, or any of your relative shall not have any association / business relations with any, existing supplier's, associates, clients of the company, nor they may directly or indirectly sell any such similar product categories or may help or advise or assist to any person or a business entity in selling such similar product categories or product segment as mentioned in clause 6 of NON COMPETE - NON DISCLOSURE/ SECRECY AGREEMENT in which the company is presently involved or have prospects.

That in case of breach of any clause or the meaning of such clauses implied or written, the company shall have the right to recover any damages caused on account of such breach(s) from you.

ACCEPTANCE

I have read and understood the above NON COMPETE, NON DISCLOSURE/ SECRECY AGREEMENT and declare to abide by it in full.

Name : Abhishek Aggarwal Sign : Date : 18th May 2023

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